

**BEFORE THE FEDERAL MARITIME COMMISSION
OFFICE OF ADMINISTRATIVE LAW JUDGES
WASHINGTON, D.C.**

DOCKET NO. 25-24

SOUTHERN INTERNATIONAL CO., LTD.,

Complainant,

v.

DAYNAMEZ GROUP OF COMPANIES LLC,

Respondent.

**COMPLAINANT'S REPLY IN FURTHER SUPPORT OF MOTION TO DISMISS
RESPONDENT'S COUNTERCLAIM OR, IN THE ALTERNATIVE, TO STRIKE
PORTIONS OF THE COUNTERCLAIM**

Complainant Southern International Co., Ltd. ("SIC"), through its undersigned representative, respectfully submits this Reply in further support of Complainant's Motion to Dismiss Respondent Daynamez Group of Companies LLC's ("Daynamez") Counterclaim or, in the Alternative, to Strike Portions of the Counterclaim (the "Motion"). This Reply responds to arguments raised in Daynamez's May 4, 2026 Response to Complainant's Motion to Dismiss the Counterclaim (the "Response") and is submitted pursuant to 46 C.F.R. § 502.70(c).

PRELIMINARY STATEMENT

Daynamez's Response confirms the defect identified in SIC's Motion. Daynamez has not pleaded a Shipping Act counterclaim. Instead, Daynamez has pleaded a private contract, accounting, indemnity, and downstream loss-allocation dispute, and then attached Shipping Act labels to that dispute by referring to the parties' "same factual scenario," "Net/Net" dealings, SIC's OTI status, and 46 U.S.C. § 41102. For avoidance of doubt, SIC does not admit that any amount is owed to Daynamez. Any reference in this Reply to "money owed,"

“failure to pay,” “debt,” “unpaid balances,” or similar wording describes Daynamez’s allegations and pleaded theory only.

Daynamez’s main argument is that, because SIC’s Shipping Act claims survived dismissal, Daynamez may bring any counterclaim arising from the same commercial relationship. That is not the rule governing counterclaims before the Commission. Under 46 C.F.R. § 502.62(b)(4), a counterclaim “must allege and be limited to violations of the Shipping Act within the jurisdiction of the Commission.” Therefore, it is not enough that the counterclaim involves the same parties, the same commercial history, the same shipments, or the same Net/Net arrangement. The Counterclaim must itself plead facts showing a cognizable Shipping Act violation.

The Response does not supply those missing facts. For Count I, Daynamez says only that SIC allegedly “abandoned cargo,” that Daynamez was listed as a notify party on a bill of lading, and that “it is believed” SIC booked or assisted with booking cargo. Daynamez also states that it “could be more descriptive” if the Presiding Officer wishes. That statement confirms that the Counterclaim, as pleaded, is insufficient; it does not cure the defect. For Count II, Daynamez describes its claim as “the sum total of the dealings between the parties” and “a failure to pay the Respondent.” Response ¶¶ 2, 11. Those descriptions confirm that Count II is Daynamez’s claim for allegedly owed money under the parties’ commercial relationship, not a Shipping Act claim.

The Motion should therefore be granted. At minimum, the Presiding Officer should strike, disregard, or otherwise exclude the contract, indemnity, defense, hold-harmless, loss-of-business, reputational-damages, consequential-damages, and other non-Shipping Act allegations and requested relief that exceed the Commission’s limited counterclaim jurisdiction.

ARGUMENT

Daynamez’s Response raises several overlapping themes rather than separate legally sufficient grounds for preserving the Counterclaim. SIC addresses those themes below, including Daynamez’s arguments concerning the same factual scenario, Net/Net transactions, alternative pleading, SIC’s OTI status, alleged cargo handling, alleged

nonpayment, pleading format, notify-party status, and the asserted overlap between contract and Shipping Act theories.

I. DAYNAMEZ’S “SAME FACTUAL SCENARIO” THEORY IS CONTRARY TO 46 C.F.R. § 502.62(b)(4)

Daynamez repeatedly argues that the Commission must have jurisdiction over the Counterclaim because it arises from the “same set of dealings,” “same factual scenario,” or “same series of dealings” as SIC’s claims. Response ¶¶ 1, 4, 11, 16. That argument treats Commission counterclaims as if they were ordinary related counterclaims in civil litigation. But the Commission’s rule is narrower.

Commission Rule 502.62(b)(4) provides:

“In addition to filing an answer to a complaint, a respondent may include in the answer a counterclaim against the complainant, a crossclaim against another respondent, or a third-party complaint. A counterclaim, a crossclaim, or a third-party complaint must allege and be limited to violations of the Shipping Act within the jurisdiction of the Commission. The service and filing of a counterclaim, a crossclaim, or a third-party complaint and answers or replies thereto are governed by the rules and requirements of this section for the filing of complaints and answers.” 46 C.F.R. § 502.62(b)(4).

This rule does not authorize a respondent to bring every contract, indemnity, accounting, or commercial dispute that arises from the same business relationship. It permits only counterclaims that allege and are limited to Shipping Act violations within Commission jurisdiction. A counterclaim therefore must stand on its own as a Shipping Act claim; it cannot borrow jurisdiction merely because SIC’s claims are properly before the Commission. Dismissal is also procedurally proper under 46 C.F.R. § 502.72(c), which applies the Commission’s dismissal rule to counterclaims, crossclaims, and third-party claims.

The same limitation is reflected in the Shipping Act itself. A private party may file with the Commission a sworn complaint “alleging a violation” of the Shipping Act.

46 U.S.C. § 41301(a). The Commission's jurisdiction is therefore not created by commercial overlap, convenience, or a party's preference to resolve all disputes in one forum. Jurisdiction exists only when the pleading alleges a violation of the Shipping Act within the Commission's jurisdiction.

The Presiding Officer has already applied that discipline in this case. The December 1, 2025 and January 16, 2026 orders required SIC to plead sufficient factual content supporting regulated-entity status and statutory violations. The March 16, 2026 order denied Daynamez's motion to dismiss SIC's Second Amended Complaint only after concluding, at the pleading stage, that SIC had alleged additional facts supporting Daynamez's alleged NVOCC status, Daynamez's holding out, Daynamez's collection of ocean freight funds, Daynamez's failure to remit those funds to downstream carriers, and resulting liens and detention of 558 containers at United States ports.

Daynamez has not made a comparable showing. Its Counterclaim does not identify a coherent statutory theory for either Count. It does not plead transaction-level facts. It does not allege a Shipping Act practice by SIC that satisfies 46 C.F.R. § 545.4. And it does not transform Daynamez's allegations of unpaid balances or indemnity exposure into a Shipping Act violation merely by saying that the claims arise from the same relationship.

Daynamez's reliance on *Samsung Electronics America, Inc. v. HMM Co. Ltd. f/k/a Hyundai Merchant Marine Co., Ltd.*, Docket No. 24-23, 2025 WL 992387 (ALJ Mar. 24, 2025), cited in Response ¶ 8, does not cure the defects in the Counterclaim. Samsung confirms the related pleading principle that a party invoking the Shipping Act must allege facts showing a statutory violation rather than merely recasting a commercial or contract dispute. Applied together with Rule 502.62(b)(4), that principle confirms that Daynamez's Counterclaim must itself allege and be limited to plausible Shipping Act violations. Daynamez has not done so. It cites § 41102 generally, later suggests § 41102(c) only "should your honor deem it necessary," and asks the Presiding Officer to reconstruct a statutory claim from contract, debt, and indemnity allegations. Rule 502.62(b)(4) does not permit that. See also *Samsung*

Electronics America, Inc. v. SM Line Corp., Docket No. 23-01, Order Denying Motion for Leave to File Third-Party Complaint, at 2–3 (ALJ Jan. 31, 2024) (requiring proposed third-party pleading to allege plausible Shipping Act violations within Rule 502.62(b)(4)); *M.E. Dey & Co., Inc. v. Hapag-Lloyd AG & Hapag-Lloyd (Am.) LLC*, Docket No. 22-35, 2023 WL 3174109, at *2 (ALJ Apr. 27, 2023) (Order on Motion for Leave to File Third-Party Complaint) (denying without prejudice where proposed pleading did not clearly allege a Shipping Act violation).

Daynamez’s criticism of SIC’s earlier pleading format, Response ¶ 5, is immaterial. The question on this Motion is not whether SIC’s earlier complaints required amendment; those issues have already been addressed through the Presiding Officer’s prior orders and SIC’s subsequent amended pleadings. The question now is whether Daynamez’s Counterclaim, as pleaded, alleges and is limited to Shipping Act violations within Commission jurisdiction. A counterclaim does not become sufficient merely because it is shorter or arranged in numbered paragraphs. It must plead facts supporting a cognizable statutory violation.

Nor does Daynamez’s reference to alternative pleading cure the defect. A party may plead alternative theories only if each theory is legally cognizable and sufficiently pleaded. Rule 502.62(b)(4) still requires any counterclaim asserted in this proceeding to allege and be limited to Shipping Act violations within Commission jurisdiction.

II. “NET/NET” FACTS DO NOT ESTABLISH JURISDICTION OVER DAYNAMEZ’S CLAIMS FOR ALLEGEDLY OWED MONEY

Daynamez argues that SIC relied on “Net/Net” transactions to support jurisdiction over SIC’s claims, and therefore SIC “cannot have it both ways” when Daynamez invokes the same phrase. Response ¶¶ 3, 10–13. That argument misstates SIC’s theory and the Presiding Officer’s ruling.

SIC did not plead that “Net/Net” is itself a statutory cause of action. SIC pleaded that Daynamez’s “Net/Net” offers, together with Daynamez’s website representations, direct solicitations, assumption of responsibility for freight payment, control over downstream payment and release flow, and receipt of ocean freight funds, supported

a plausible inference that Daynamez held itself out as and acted as an NVOCC. In SIC's pleading, the "Net/Net" facts helped show Daynamez's regulated capacity and carrier-like conduct. They were not a free-standing jurisdictional rule.

Daynamez now tries to reverse that logic. It argues that, because the parties used a Net/Net arrangement, any amount Daynamez claims was not paid under that arrangement must also be a Shipping Act claim. The Shipping Act does not work that way. A respondent asserting a counterclaim must plead facts showing that the counter-respondent violated a statutory duty. The label "Net/Net" does not identify a statutory prohibition, establish SIC's regulated capacity for the specific conduct alleged, show a normal, customary, and continuous practice, connect the challenged conduct to receiving, handling, storing, or delivering property, or establish proximate cause.

The March 16, 2026 order's statement that "Complainant's alleged debt does not deprive FMC of jurisdiction" does not help Daynamez. That ruling rejected Daynamez's argument that SIC's Shipping Act claims should be dismissed merely because Daynamez contended that SIC owed money. It did not find that SIC owed money, and it did not hold that Daynamez may assert a private claim for allegedly owed money or a contract claim as a counterclaim at the Commission. The distinction is critical: a contract dispute does not defeat a properly pleaded Shipping Act claim, but a contract dispute does not become a Shipping Act claim unless the pleader alleges facts showing a statutory violation.

III. DAYNAMEZ'S RESPONSE DOES NOT CURE COUNT I

Count I is styled as "Indemnification, Defend, and Hold Harmless and violation of the Shipping Act." Daynamez's Response confirms that Count I is, at most, a downstream indemnity and loss-allocation claim involving DGS Logistics, OOCL, and allegedly abandoned cargo. Response ¶¶ 7–10.

Count I still does not plead facts sufficient to state a Shipping Act claim. Even assuming the attached letter identifies some downstream demand, Count I itself does not plead facts sufficient to connect that demand to a Shipping Act violation by SIC.

It does not plead the statutory duty allegedly breached, SIC's regulated capacity with respect to the challenged conduct, a normal, customary, and continuous practice, or proximate cause. The Response states only that a letter is attached to the Counterclaim, that SIC allegedly "abandoned cargo," that Daynamez was a notify party, and that "it is believed" SIC booked cargo on many shipments or assisted with booking. Response ¶¶ 7, 9.

Those allegations are not enough under *Twombly* and *Iqbal*. A pleading must contain sufficient factual matter, accepted as true, to state a claim to relief that is plausible on its face. *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 570 (2007); *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). The Commission applies the same Rule 12(b)(6) plausibility framework in Shipping Act proceedings. *Mitsui O.S.K. Lines Ltd. v. Global Link Logistics, Inc.*, Docket No. 09-01, 2011 WL 7144008, at *11-12 (FMC Aug. 1, 2011); *Cornell v. Princess Cruise Lines, Ltd.*, Docket No. 13-02, 2014 WL 5316340, at *6-7 (FMC Aug. 28, 2014). Labels, conclusions, and formulaic recitations are insufficient. *Maher Terminals, LLC v. Port Authority of N.Y. & N.J.*, Docket No. 12-02, 2015 WL 9426189, at *12 (FMC Dec. 18, 2015).

Nor does Daynamez's reference to 46 U.S.C. § 41102 cure the defect. Section 41102 contains multiple subsections with distinct elements. Daynamez now suggests that "46 USCA 41102(c)" may apply "should your honor deem it necessary." Response ¶ 7. But it is Daynamez's burden to plead a claim; it is not the Presiding Officer's burden to select a statutory theory and reconstruct it for Daynamez.

To state a plausible claim under 46 U.S.C. § 41102(c), Daynamez must plausibly allege facts showing, among other things, that: (a) SIC was an ocean common carrier, marine terminal operator, or ocean transportation intermediary; (b) the claimed acts or omissions occurred on a normal, customary, and continuous basis; (c) the practice or regulation related to or was connected with receiving, handling, storing, or delivering property; (d) the practice or regulation was unjust or unreasonable; and (e) the practice or regulation was the proximate cause of the claimed loss. 46 C.F.R. § 545.4. Count I does not plead those elements with supporting facts.

The relief sought in Count I further confirms its non-statutory character. As pleaded here, Daynamez seeks indemnification, defense, hold-harmless relief, business loss, reputational damages, consequential damages, and downstream exposure based on private contract, indemnity, and downstream loss-allocation theories. Those requests do not become Shipping Act reparations merely because the underlying business relationship involved ocean transportation. The Commission's jurisdiction does not expand because a respondent seeks to shift alleged downstream commercial losses to the complainant.

Daynamez's statement that it "could be more descriptive" is also insufficient. Response ¶ 9. Daynamez cannot cure pleading defects through argument in a response brief. The present Counterclaim should be judged as pleaded, and Count I should be dismissed.

IV. DAYNAMEZ'S RESPONSE CONFIRMS THAT COUNT II IS A CONTRACT AND ACCOUNTING CLAIM FOR ALLEGEDLY OWED MONEY

Daynamez's Response describes Count II as "the amount claimed is the sum total of the dealings between the parties" and "this is for a failure to pay the Respondent." Response ¶ 11. It further states that "there were shipments for which money was owed to Daynamez," that "[t]he money was to be paid on a Net/Net basis," and that the "amount owed is cumulative of several shipments." Response ¶¶ 12, 15. These statements confirm that Count II is Daynamez's accounting, contract, and alleged debt-collection claim.

Daynamez's title for Count II - "Breach of Contract and violation of the Shipping Act" - does not change that result. Daynamez argues that SIC's Second Amended Complaint is based in part on a contract and that a breach of contract may also constitute a Shipping Act violation. Response ¶¶ 14, 17. SIC does not dispute the abstract proposition that a contractual relationship and a Shipping Act violation may coexist. But a Shipping Act claim may coexist with a contract dispute only when the pleading alleges facts showing a statutory violation that is more than a simple contract breach. *Cargo One, Inc. v. COSCO Container Lines Co.*, Docket No. 99-24,

28 S.R.R. 1635, 1645, 2000 WL 1648961, at *14–15 (FMC Oct. 31, 2000); *Anchor Shipping Co. v. Aliança Navegação E Logística Ltda.*, Docket No. 02-04, 30 S.R.R. 991, 2006 WL 2007808, at *10–11 (FMC May 10, 2006); *MCS Industries, Inc. v. Mediterranean Shipping Co. S.A.*, Docket No. 21-05, 2024 WL 95383, at *7 (FMC Jan. 3, 2024). Put differently, Shipping Act claims and contract claims are distinct; the existence of a contract does not defeat a statutory claim, but the existence of a contract also does not create one. The defect is that Daynamez has pleaded the former without pleading facts that make the latter plausible.

The D.C. Circuit’s recent discussion of *Cargo One* is consistent with this principle. A claim is properly before the Commission when it involves “elements peculiar to the Shipping Act” and “raises issues beyond contractual obligations”; allegations essentially comprising contract law claims remain outside the Commission’s purview unless the complainant can demonstrate that the claim is “more than a simple contract breach claim.” *MSC Mediterranean Shipping Co. S.A. v. Fed. Mar. Comm’n*, 141 F.4th 222, 231–33 (D.C. Cir. 2025) (discussing *Cargo One*, 2000 WL 1648961, at *12–15).

Count II fails that test. It does not plead a statutory practice. It does not identify shipment-level facts. It does not plead a normal, customary, and continuous practice by SIC connected to receiving, handling, storing, or delivering property. It does not plead bad faith, deceit, false billing, false classification, false weighing, false measurement, or any other unjust or unfair device or means. It does not identify any rate, tariff, service contract, filed agreement, or Commission-regulated charge that SIC allegedly manipulated. It simply alleges, without admitting the truth of that allegation, that SIC owes money.

Daynamez’s assertion that it was listed as a notify party or was otherwise active in the transactions does not supply the missing statutory elements. Notify-party status is not a Shipping Act cause of action, does not identify any statutory duty breached by SIC, and does not convert Daynamez’s allegation of an unpaid balance into a normal, customary, and continuous practice under 46 C.F.R. § 545.4.

To the extent Daynamez is attempting to plead unpaid ocean freight under 46 U.S.C. § 41102(a), the Commission's interpretive rule makes clear that, "[i]n the absence of evidence of bad faith or deceit, the Federal Maritime Commission will not infer an 'unjust or unfair device or means' from the failure of a shipper to pay ocean freight." 46 C.F.R. § 545.2. Nor does Daynamez plead that SIC knowingly and willfully obtained ocean transportation at less than applicable rates through false billing, false classification, false weighing, false measurement, or any comparable unjust or unfair device. To the extent Daynamez is attempting to plead 46 U.S.C. § 41102(c), it has not pleaded the elements required by 46 C.F.R. § 545.4. Under either theory, Count II fails.

V. SIC'S OTI STATUS DOES NOT MAKE EVERY COMMERCIAL DISPUTE WITH SIC A SHIPPING ACT COUNTERCLAIM

Daynamez argues that SIC "holds itself out as an OTI," was a "third party intermediary," and was named as shipper on at least some bills of lading. Response ¶¶ 6, 16. Even if accepted for purposes of this Motion, those assertions do not state a claim.

The Shipping Act does not impose strict liability on every OTI for every commercial disagreement connected to ocean transportation. Regulated status is necessary but not sufficient. Daynamez must still identify the specific conduct challenged, the statutory duty allegedly breached, the regulated capacity in which SIC acted with respect to that conduct, and the facts making the alleged violation plausible. Daynamez's Response does none of that.

For Count I, Daynamez does not allege facts showing that SIC, in a regulated OTI capacity, established or failed to observe any normal, customary, and continuous practice relating to cargo handling. For Count II, Daynamez does not allege facts showing that SIC's alleged nonpayment to Daynamez was a Shipping Act practice rather than Daynamez's private accounting dispute. Being an OTI is not a substitute for pleading a Shipping Act violation.

Daynamez's references to SIC allegedly not being the cargo owner, to Daynamez being listed as a notify party, or to SIC allegedly being named as shipper on some bills of lading do not change the analysis. None of those labels identifies the statutory duty allegedly breached, the regulated capacity in which SIC allegedly acted with respect to the challenged conduct, or the normal, customary, and continuous practice required for a § 41102(c) claim.

VI. DAYNAMEZ'S FORUM-CONVENIENCE ARGUMENT CANNOT EXPAND COMMISSION JURISDICTION

Daynamez argues that "it would not be in the best interests of justice" to have the claim and counterclaim determined in two different jurisdictions or forums.

Response ¶ 4. That is not the legal standard. The Commission is a tribunal of limited jurisdiction and must determine jurisdiction before reaching the merits. *Crowley Liner Serv., Inc. & Trailer Bridge, Inc. v. P.R. Ports Auth.*, Docket No. 00-02, 29 S.R.R. 394, 396, 2001 FMC LEXIS 7, at *9 (ALJ Sept. 20, 2001). *The party invoking Commission jurisdiction bears the burden of establishing it. Crocus Invs., LLC v. Marine Transp. Logistics, Inc.*, Docket No. 15-04, 1 F.M.C.2d 403, 406, 2019 FMC LEXIS 44, at *10 (FMC July 16, 2019).

SIC did not "choose" to submit all private disputes between the parties to the Commission. SIC filed a Shipping Act complaint alleging specific statutory violations. Daynamez may defend against those claims, and it may assert counterclaims only to the extent permitted by 46 C.F.R. § 502.62(b)(4). The parties' desire to avoid parallel proceedings cannot confer jurisdiction over claims that are not Shipping Act claims. Nor does Daynamez's reference to the parties' arbitration clause alter the analysis. Whether any private contract dispute may belong in another forum does not expand the Commission's counterclaim jurisdiction or permit Daynamez to assert non-Shipping Act claims in this proceeding.

VII. IF THE COUNTERCLAIM IS NOT DISMISSED IN FULL, THE NON-SHIPPING ACT PORTIONS SHOULD BE STRICKEN, DISREGARDED, OR OTHERWISE EXCLUDED

If the Presiding Officer declines to dismiss the Counterclaim in full, SIC respectfully requests that the Presiding Officer strike, disregard, or otherwise exclude from the scope of this proceeding all portions of the Counterclaim that exceed the permissible scope of 46 C.F.R. § 502.62(b)(4). As pleaded here, this includes requests for indemnification, defense, hold-harmless relief, breach-of-contract damages, business loss, reputational damages, consequential damages, and any allegations directed to alleged private debt collection, accounting, arbitration, or contract interpretation rather than Shipping Act violations.

To the extent the Presiding Officer treats SIC's alternative request as a Rule 12(f)-type request under 46 C.F.R. § 502.12, striking the non-Shipping Act portions is appropriate because those allegations exceed Rule 502.62(b)(4), would broaden discovery into matters outside Commission jurisdiction, and would prejudice orderly adjudication. SIC does not rely on Rule 12(f) as an independent Commission rule; rather, to the extent the Presiding Officer treats the alternative request as strike-type relief, Rule 12(f) is appropriately used by analogy through 46 C.F.R. § 502.12. The Commission Rules do not provide a special strike rule for this exact circumstance, and Rule 502.12 authorizes use of the Federal Rules of Civil Procedure where a situation is not covered by a specific Commission rule and the Federal Rules are consistent with sound administrative practice.

The same relief is warranted to preserve orderly discovery and prevent the proceeding from expanding into a general commercial accounting dispute. The operative claims currently before the Commission are SIC's Shipping Act claims under 46 U.S.C. §§ 40901, 40902, and 41102(c). Daynamez should not be permitted to enlarge this proceeding by asserting alleged contract, accounting, and indemnity theories that the Commission's counterclaim rule does not authorize.

CONCLUSION

For the foregoing reasons, and for the reasons stated in SIC's Motion, SIC respectfully requests that the Presiding Officer enter an order:

1. **Dismissing Count I of Daynamez's Counterclaim;**

2. **Dismissing** Count II of Daynamez's Counterclaim;
3. **Dismissing** the Counterclaim in its entirety because it does not allege and is not limited to Shipping Act violations within the Commission's jurisdiction as required by 46 C.F.R. § 502.62(b)(4);
4. **In the alternative**, striking, disregarding, or otherwise excluding all non-Shipping Act allegations and requests for relief, including indemnification, defense, hold-harmless relief, breach-of-contract damages, business loss, reputational damages, consequential damages, and private accounting or debt-collection theories; and
5. **Granting** such other and further relief as the Presiding Officer deems just and proper.

Dated: May 11, 2026

Respectfully submitted,

SOUTHERN INTERNATIONAL CO., LTD.



By: _____ **Giám Đốc**
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CERTIFICATE OF SERVICE

I certify that on this 11 day of May 2026, a true and correct copy of the foregoing Complainant's Reply in Further Support of Motion to Dismiss Respondent's Counterclaim or, in the Alternative, to Strike Portions of the Counterclaim was filed with the Secretary of the Federal Maritime Commission and served by electronic mail upon counsel for Respondent Daynamez Group of Companies LLC at the following address:

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The filing was transmitted by electronic mail to the Secretary of the Federal Maritime Commission at secretary@fmc.gov and courtesy copied to judges@fmc.gov.



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